

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 13-14 Amendments to Title 16 - Legislature and Legislation

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the Office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Tribal Legislature of the Chickasaw Nation deems it necessary to amend its rules of operation of the Legislative Department.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature adopts the following amendments and changes to Title 16 of the Code of the Chickasaw Nation:

Amend **SECTION 16-103** **ORGANIZATION AND COMMITTEES.** to read as follows:

At its first regular session each year, the Legislature shall organize and elect officers from its members. Officers shall include a Chairperson and a Secretary. The Chairperson shall nominate a Recording Secretary and a Sergeant-at-arms for placement in office by and with the advice and consent of the Legislature. The Chairperson shall preside over all meetings of the Legislature.

Amend part (I) of **SECTION 16-107** **DEFINITIONS.** to read as follows:

- (I) "Formal assembly" means any Regular or Special Session of a quorum of the Tribal Legislature.
 - (1) "Regular Session" means the Legislature meeting in accordance with Article VIII, Sections 1, 2 and 4, of the Constitution.
 - (2) "Special Session" means the Legislature meeting in accordance with Article VIII, Sections 2, 3 and 4, of the Constitution.

Add a new part (J) of **SECTION 16-107** **DEFINITIONS.** to read as follows:

- (J) "Executive Session" means a meeting in which at least nine (9) members of the Legislature are in attendance. It is closed to the public, and called for the purpose of deciding issues of internal policies and procedures for the operation of the Legislative

Department of the Chickasaw Nation. An Executive Session may be requested by the Chairperson of the Tribal Legislature, or by request to the Chairperson from any tribal Legislator. An Executive Session may include technical and/or administrative support and/or witnesses, so designated and so approved by the Chairperson; or, upon the approved motion of any Tribal Legislator.

Under **SECTION 16-107 DEFINITIONS**, re-number the previous part (J) as part (K), the previous part (K) as part (L), the previous part (L) as part (M), the previous part (M) as part (N), the previous part (N) as part (O) and the previous part (O) as part (P).

Delete part of **SECTION 16-108 MEMBERS & OFFICERS - GENERAL PROVISIONS**, and re-number part (D) as part (C), part (E) as part (D), part (F) as part (E), part (G) as part (F), part (H) as part (G), part (I) as part (H), part (J) as part (I), and part (K) as part (J):

Amend sub-part 2. of part (A) of **SECTION 16-109 OFFICERS OF THE TRIBAL LEGISLATURE**, to read as follows:

2. The Chairperson shall seek the advice and consent of the Tribal Legislature, before making any recommendations to or participating in any decisions with the Executive Department of the Chickasaw Nation on any matter that may affect the welfare of the Nation.

Amend sub-part 3. of part (A) of **SECTION 16-109 OFFICERS OF THE TRIBAL LEGISLATURE**, to read as follows:

3. During the first year of his first term, a Legislator may not be elected to the office of Chairperson of the Legislature.

Amend sub-part 4. of part (A) of **SECTION 16-109 OFFICERS OF THE TRIBAL LEGISLATURE**, to read as follows:

4. The number of times a member of the Legislature may serve as Chairperson shall be limited to two consecutive terms.

Amend sub-part 2. of part (B) of **SECTION 16-109 OFFICERS OF THE TRIBAL LEGISLATURE**, to read as follows:

2. The number of times a member of the Legislature may serve as Secretary shall be limited to two consecutive terms.

Amend sub-part 3. of part (B) of **SECTION 16-109 OFFICERS OF THE TRIBAL LEGISLATURE**, to read as follows:

3. A member of the Legislature may not serve in the office of Secretary his first year as a Legislator.

Amend sub-part 2. of part (C) of SECTION 16-109 OFFICERS OF THE TRIBAL LEGISLATURE., to read as follows:

2. The Sergeant-at-Arms shall position himself at the main entrance of the meeting room so that his presence and his function shall be readily discernable by the Legislature and by the gallery. In addition to the Legislative Sessions, the presence of the Sergeant-at-Arms will be required for Executive Sessions, and the Committee of the Whole meetings.

Replace all parts and sub-parts of SECTION 16-204 COMMITTEES & RULES. with the following:

- (A)
 - 1. Members of the committees of the Tribal Legislature are appointed by the Chairperson. The Chairperson shall designate the Committee Chairmen. Committees subject to appointment are: Standing Committees; Sub-committees; Special or Select Committees; Special Advisory Committees; Joint Committees; and, Ad Hoc Committees. Such committees, in accordance with the laws of the Chickasaw Nation and the rules, herein, are authorized to conduct the business for which they are created.
 - 2. The Chairman shall call a committee meeting as he deems necessary. Each Chairman shall designate a Chairman Pro Tempore to conduct the committee meetings in the absence of the Chairman. If, either, the Chairman or Chairman Pro Tempore are unable to attend a committee meeting, then the committee members, in attendance, shall select someone from among their numbers to conduct the meeting.
 - 3. Any Legislator, not a member of the committee in which he is attending, shall be permitted to address the business of the committee upon his recognition by the Chairman.
 - 4. Upon a request made to the Chairman, citizens, technical support, administrative support, and/or, from time to time, Executive Department representatives, special guests and witnesses may be included in the committee meetings.
- (B)
 - 1. "Standing committee" is a committee appointed by the Chairperson, comprised only of members of the Legislature, which considers business falling within the category of matters over which it has been given jurisdiction. The Chairperson shall be a non-voting member of all standing committees, but may vote in order to break a tie. In addition to standing committees which the Secretary may be assigned, the Chairperson may assign the Secretary to other standing committees to act in the

Chairperson's capacity as a non-voting member of the committee, except to break a tie, when the Chairperson cannot be in attendance.

2.The Chairperson shall assign proposed legislation to a standing committee for further review. It shall be kept in said committee no longer than the third Regular Session of the Legislature following its assignment to said committee, when it shall be presented on the agenda.

3.No legislation assigned to a standing committee shall be allowed to die in committee.

4.Each standing committee, through its Chairman, shall report its recommendations on proposed legislation to the Legislature.

5.Legislation, not assigned to a standing committee, may be presented in a Legislative Session by an individual member of the Legislature for the purpose of its consideration, assignment, or other action.

6.Each standing committee, except those committees separately provided for, shall be composed of not more than six members of the Legislature, in addition to the Chairperson. No Legislator shall serve on more than four standing committees, except when a committee waives such provision.

7.It shall be the responsibility of the Chairman of a committee to conduct the meeting and to provide for the recording and transcription of the minutes.

8.The following are standing committees of the Tribal Legislature, the provinces of some which may, from time to time, best be addressed within the structure of a joint committee, special/select committee, ad hoc committee, or the Committee of the Whole, as determined by the Chairperson:

- (a) The Legislative Committee shall be composed of the Chairmen of all the standing committees. The Legislative Committee shall be exempt from the four standing committee rule referred to in SEC.16-204, (B) 6. The Legislative Committee shall be responsible for the development of tribal laws relating to their Legislative authorities under the Constitution of the Chickasaw Nation. Sub-committees may include, but are not limited to, the calendar, rules, elections, and ethics.
- (b) The Finance Committee shall be responsible for receiving, reviewing, and/or developing all proposed legislation relating to the finances and fiscal policy of the Chickasaw Nation. Sub-committees may include, but are not limited to, budgets, audits, finances and salaries.

- (c) The Human Resources Committee shall be responsible for proposed legislation dealing with services to tribal citizens and employees of the Chickasaw Nation. Sub-committees may include, but are not limited to, personnel, tribal enrollment, citizenship, resumes on all gubernatorial appointees, applications for grants, and programs' operations.
- (d) The Land Development Committee shall be responsible for proposed legislation pertaining to the acquisition, leasing, disposition, and management of real property of the Chickasaw Nation. Sub-committees may include, but are not limited to, all real property acquisition, leasing, disposition, and management, and review of the Chickasaw Housing Authority.
- (e) The Tribal Historic and Cultural Preservation Committee shall be responsible for proposed legislation pertaining to language preservation, tribal grave-site identification and preservation, artifact identification and preservation, ceremonial grounds identification and preservation, and historical archive preservation. The committee may be composed of other persons, such as scholars and historians, but they shall not be allowed to vote on proposed legislation. The Tribal Historic and Cultural Preservation Committee shall be exempt from the four standing committee rule referred to in SEC.16-204, (B) 6. Sub-committees may include, but are not limited to, language preservation, grave-site identification and preservation, ceremonial grounds identification and preservation, and historical archive preservation.
- (f) The Education and Health Care Committee shall be responsible for proposed legislation pertaining to tribal education services, scholarships, and health care programs and services. Sub-committees may include, but are not limited to, Libraries, Schools, Scholarships, Native American Studies, and Health Care services, and clinics' inspection and review.
- (g) The Tribal Justice Committee shall be responsible for proposed legislation pertaining to civil and criminal laws, tribal courts, and law-related policies and procedures. The Tribal Justice Committee shall be exempt from the four standing committee rule referred to in SEC.16-204, (B) 6. There shall be established a permanent sub-committee which is designated the Criminal Code Sub-committee for the purpose of continuing work on the Criminal and Civil codes for the Chickasaw Nation. The Criminal Code Sub-committee shall consist of all the legislators on the Tribal Justice Committee and any other persons that the Chairperson designates. Only Legislators on the Criminal Code Sub-committee shall be voting members of that sub-committee. All other members of the Criminal Code Sub-committee shall be advisory, only. Sub-committees may include, but shall not be limited to, courts, procedures, juvenile adjudication, and safety and law enforcement.

(h) The Economic Development Committee shall be responsible for proposed legislation pertaining to existing tribal businesses, as well as, proposed business, commercial, and industrial enterprises in which the Chickasaw Nation may be developing or expanding. The Economic Development committee shall, also, be responsible for reviewing and making recommendations to the Chickasaw Tribal Legislature concerning any agreements designed to involve the participation of the Chickasaw Nation in any industrial, commercial, or business endeavor, but shall exercise such discretion as may be prudent or necessary to preserve and safeguard the integrity and confidentiality of negotiations or discussions of a sensitive nature, in which, they may be involved. Sub-committees may include, but are not limited to, special oversight functions, proposal review, legal research, re-structuring or re-organizational plans.

1.A "Sub-committee" is a committee within the structure of a standing committee which shall report to the standing committee.

2.Each sub-committee shall be composed of at least three members of the standing committee. If the sub-committee is appointed for the purpose of taking action that requires the assistance of other members and/or persons other than members of the Legislature, the Chairman of the committee may designate them.

3.No member of the Legislature shall serve on more than three sub-committees within a single standing committee.

(D) A "Special" or "select committee" is a committee comprised only of members of the Legislature, to attempt to represent all points of view in the Legislature, appointed by the Chairperson, which investigates and reports on specific matters, and is dissolved by the Chairperson when that function is deemed to have been served.

1.The "Special Advisory Committee" is a special or select committee and shall consist of three members of the Tribal Legislature, appointed by the Chairperson. They shall be responsible for reviewing and approving any expenditures from the Legislative Department Budget which amount to \$50.00 or more that is not part of the normal, usual and customary day-to-day operating expenses of the Legislative Department and offices.

(E) A "Joint committee" is a special or select committee, appointed by the Chairperson, which is comprised of members of two or more standing committees. It is dissolved by the Chairperson when its function is deemed to have been served.

- (F) An "Ad hoc committee" is a committee appointed by the Chairperson as needed, comprised of members and possibly non-members of the Legislature who investigate and report on specific matters. Only Legislators appointed to an Ad Hoc committee shall be voting members of that committee or serve as its Chairman. All other members appointed to an Ad Hoc committee shall be advisory, only. It is dissolved by the Chairperson when that function is deemed to have been served.
- (G) "Committee of the Whole" means the Legislature meeting in informal session.

Amend sub-part(6)(c) of part (B) of **SECTION 16-207 RULES ON BUSINESS OF THE LEGISLATURE.** to read as follows:

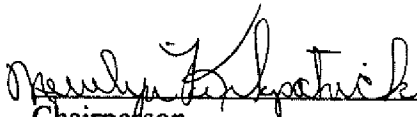
- (C) The Chairperson shall not enter into debate of an issue until he has relinquished the Chair to the Secretary. If the Secretary, upon taking the Chair to allow the Chairperson to enter into debate on the issue, had participated in the debate of the issue, then the Secretary shall no longer participate in debate of the issue until the Chairperson has returned to the Chair. The Chairperson may answer a specific and/or clarification question without it being considered debate.

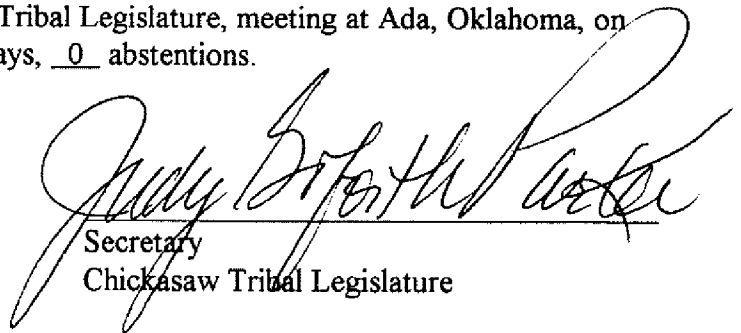
Amend sub-part(6)(d) of part (B) of **SECTION 16-207 RULES ON BUSINESS OF THE LEGISLATURE.** to read as follows:

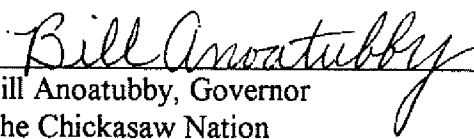
- (d) Speaking and debate:
- (1) Each member of the Legislature shall be allowed to have opportunities to speak in debate of an issue. The first opportunity shall allow each Legislator no more than five (5) minutes to speak on the issue. The subsequent opportunities shall allow each Legislator no more than two (2) minutes for each response and closing remark. If a Legislator does not use all of his allotted time during any of his opportunities to speak in debate, the Legislator loses all of his remaining time and may not relinquish it to another speaker.
 - (2) In accordance with part (B) of Section 16-109 of the Code of the Chickasaw Nation, the Secretary of the Legislature shall act as time-keeper for such debates.

- (3) A member may yield the floor to another member through the Chairperson, to either obtain a response of another member, or to permit another member to ask a question relevant to the issue being debated.
- (4) The Computation of a speaker's time in debate shall not include other speaker's Parliamentary Inquiry or Point of Information.
- (5) Members of the assembly shall address all remarks through the Chairperson. To protect decorum, members are not allowed to carry on discussion directly with one another.
- (6) The time expended in giving a Committee Report shall not be counted as time allowed for debate.
- (7) A member has no right to "explain his vote" during voting, which would be the same as debate at such time.
- (8) The Chairperson shall declare the debate closed only when all the members of the Legislature have either exercised or declined their opportunity to debate or when all members have used their allowable debate time, whichever occurs first.

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on June 21, 1996, by a vote of 13 ayes, 0 nays, 0 abstentions.


Chairperson
Chickasaw Tribal Legislature


Secretary
Chickasaw Tribal Legislature

Concur:  Date: JUN 21 1996
Bill Anoatubby, Governor
The Chickasaw Nation

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 13-14 Amendments to Title 16 - Legislature and Legislation

Explanation: This resolution replaces PR13-11 that was vetoed by the Governor in May. It is the first major revision of the provisions of the Legislative Reform Act of 1993 and was developed through the untiring efforts of the Legislative Ad Hoc Committee preparing the detail work and the review and final draft refinements made by all the members of the Legislature. These revisions corrects the discrepancy found in PR13-11 regarding the "four committee exemption" rule for serving on standing committees and deletes the changes to the "subpoena" rules, which will be studied at a later time.

Requested by: The Chickasaw Tribal Legislature

Presented by: The Honorable 'Rena Duncan, Chairman
The Legislative Committee